

The Intersection of Indigenous and Common Law Conceptions of Land: A Musqueam Case Study

A Photobook and Commentary by Muhammad Rahal

Submitted in fulfillment of the final project requirements for Aboriginal Treaty Rights and Litigation (LAW 353D.001)

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Submitted to: Professor Michael Jackson

Peter A. Allard School of Law, the University of British Columbia. Located on the traditional, ancestral, and unceded territory of the x^wməθk^wəyəm (Musqueam) First Nation.

*All photos included in the book were shot and edited by Muhammad Rahal for the purpose of this assignment

Purpose Statement

This photobook seeks to explore the relationship between indigenous peoples and land using photographic images and commentary. The images will primarily be used to examine the unique spiritual nature of First Nations' connections to their ancestral territories while trying to demonstrate how indigenous conceptions of land go beyond reductive Euro-centric concepts of title and private property. The accompanying commentary will argue that indigenous conceptions of land have been subsumed within the colonial legal framework of title codified in Canadian statute and common law, thereby impairing indigenous connections to their ancestral territories while fuelling the continued commodification of land in Canada. Due to the accessibility of their history and sacred sites, this essay will moreover focus on the experiences of the x^wməθk^wəyəm (Musqueam) First Nation in exploring these concepts.

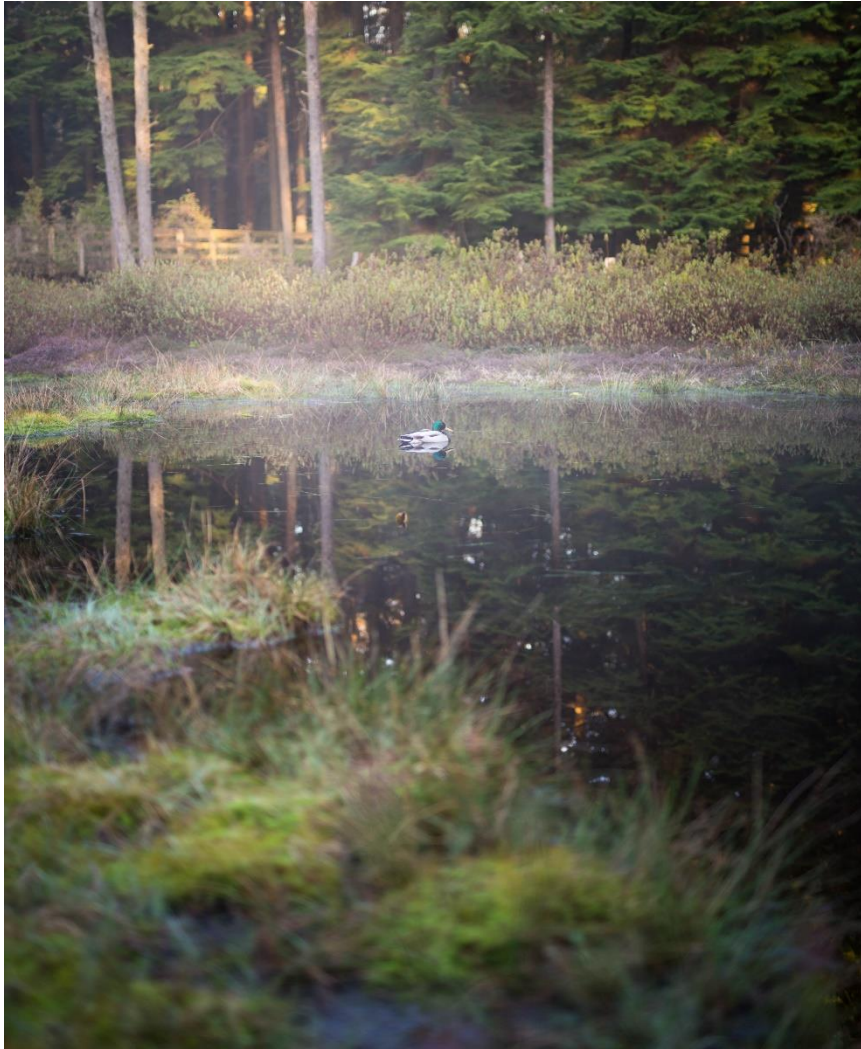
I have chosen to use photography as a medium for elucidating these ideas as I believe it allows for a deeper and more holistic understanding of indigenous peoples' profound relationship to their lands. For indigenous peoples, connection to one's land goes far beyond Common Law concepts of title or private property; as the book will explain, they tend to take on a far more esoteric element, in which the land possesses spiritual significance and informs the collective identities of First Nations. I would argue that simple writings on a page thus do not suffice in illuminating these complex ideals. My hope is that through photography, with its inherently immersive and visceral nature, indigenous conceptions of land can be more fully explicated and appreciated.

THE MUSQUEAM STORY

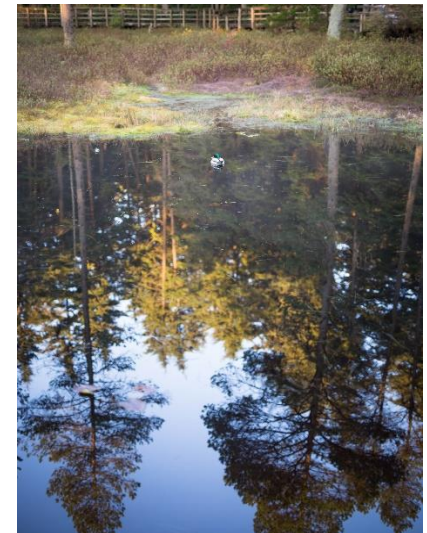
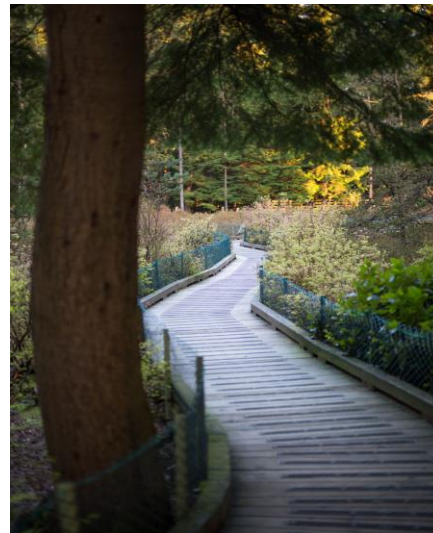


A bog known by the Musqueam people as məqʷe:m meaning “bog, boggy place.” Known by settlers today as the “Camosun Bog”.

məq^we:m (“Bog, boggy place”)



The Musqueam (x^wməθk^wəy̓əm) First Nation derived their name from the word “məq^we:m,” which roughly translates to “Bog, boggy place” in English (a location known by settlers today as “Camosun Bog”). The Musqueam believe that a two-headed serpent emerged from the bog, whose dropping was then used to create their land.¹ For the Musqueam, life and land are therefore intimately connected, with the land taking on a more spiritual meaning and informing part of their existence.



¹ Musqueam—*Our History Web Map* (Vancouver: Musqueam Indian Band, 2011), online: Musqueam: A Living Culture <<http://www.musqueam.bc.ca/musqueam-our-history-web-map>>.

THE STORY OF THE MUSQUEAM POTLATCH



*"During the season of the dog salmon,
it is said the Musqueam had a
potlatch at ʔəyalməx^w (Jericho
Beach)."²*

² Ibid.



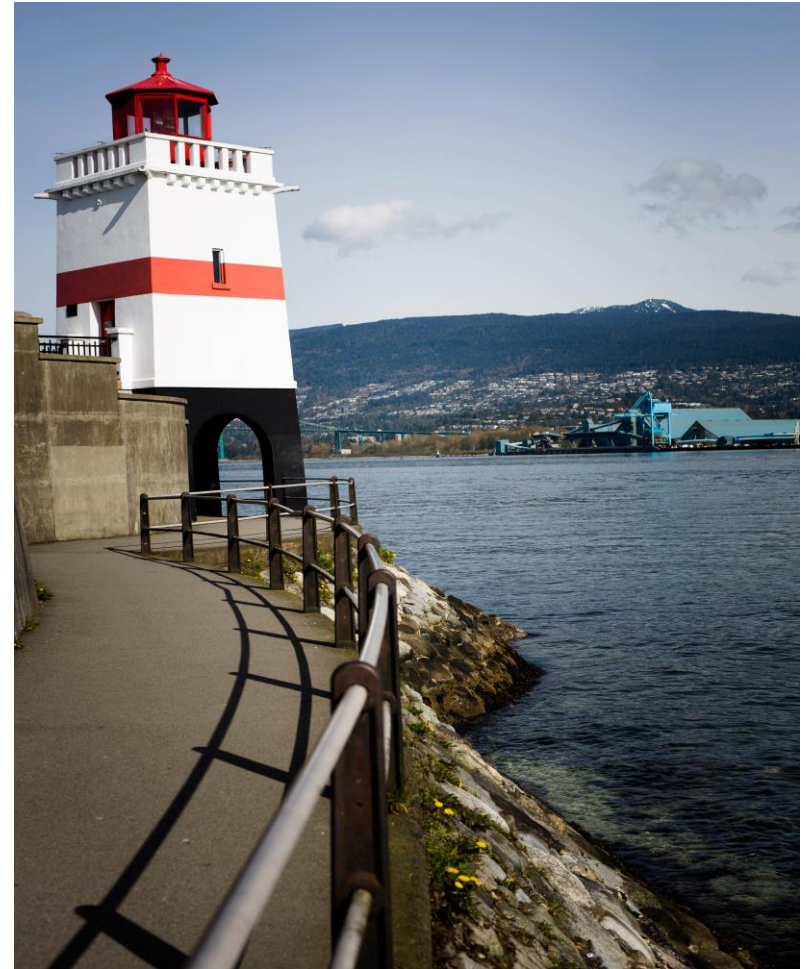
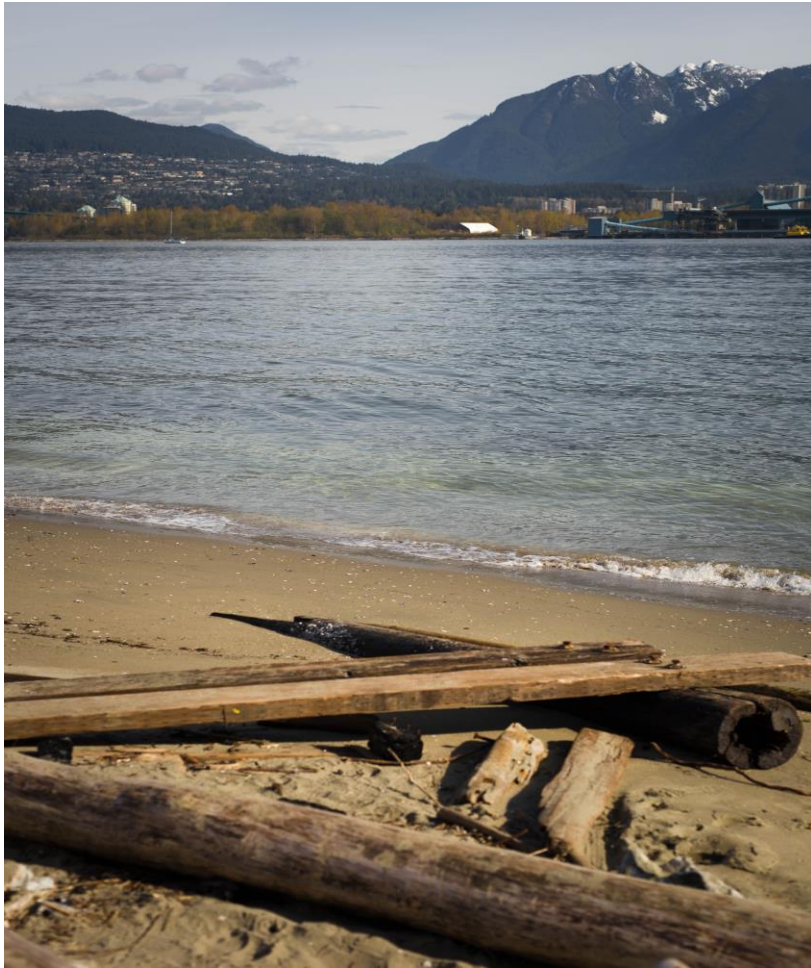
"They went far inviting their relatives from ʔəθnəc (Burrardview) and the Watchmen from xʷməqməqəs (Point Atkinson)."³

³ Ibid.



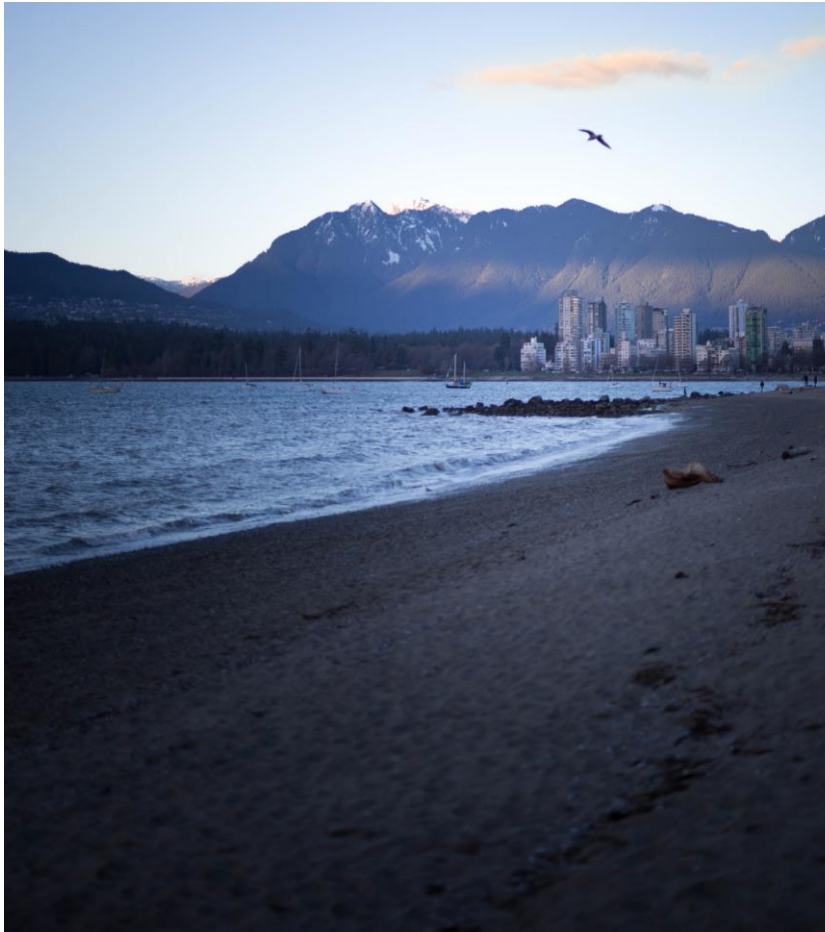
***"Now they got busy getting
food ... some left for
səlilwətaʔ (Indian Arm). And
there they caught coho."⁴***

⁴ Ibid.



"Some went to dig clams at $\chi^w a \hat{y} \chi^w \hat{a} \hat{y}$ (Lumberman's Arch) and $s p a p \hat{a} y \hat{a} q$ (Brockton Point)."⁵

⁵ Ibid.



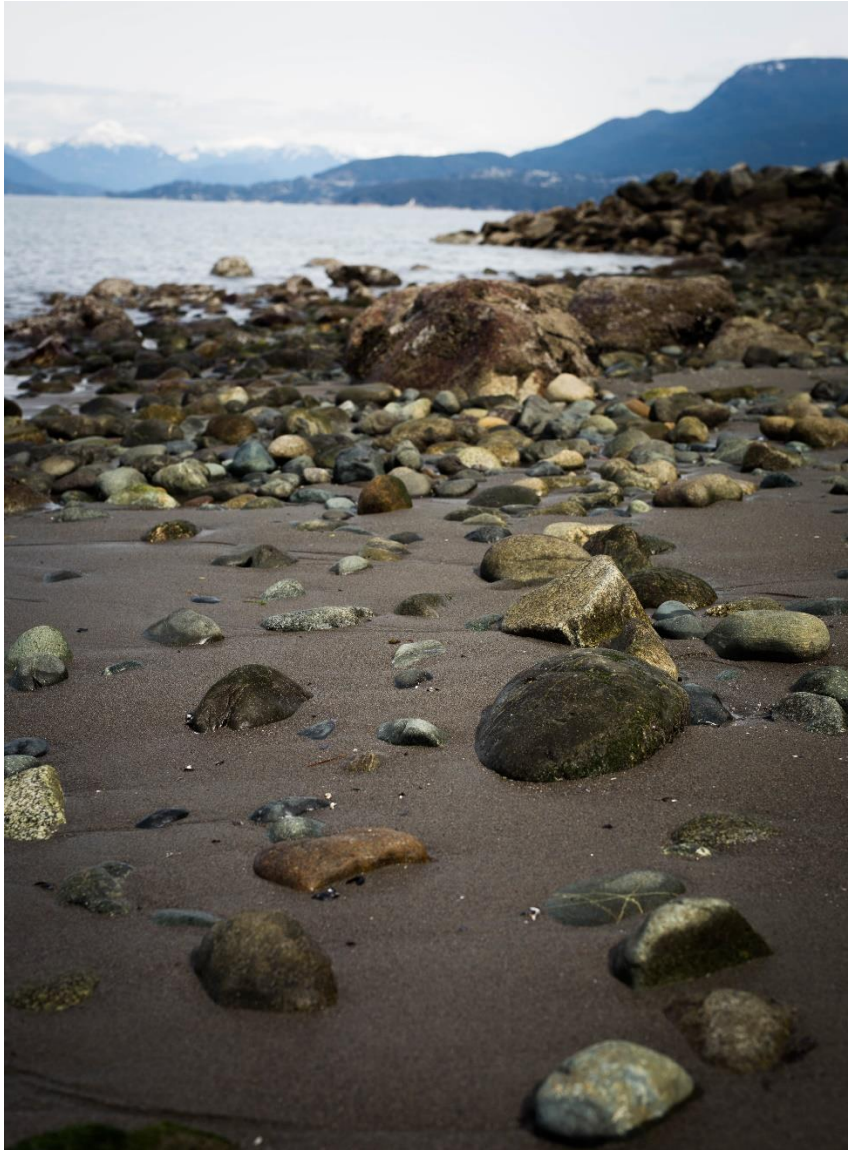
***"And a few people raked herring
at sənəʔqʷ (Kitsilano Point)."⁶***

⁶ Ibid.

⁷ Ibid.



***"Everyone gathered at
ʔəyalməxʷ (Jericho Beach). They
danced and sang all day."⁷***



***"They potlatched for two days.
Then they went home to
Musqueam. Going around Point
Grey, north of Wreck Beach at
tθəcəliʔq^w, they sang "O West
Wind O". The End."***⁸

For the Musqueam First Nation, as with many other First Nations in Canada, land was and continues to be intimately connected to the traditions, customs and identity of the First Nation. Traditional ceremonies like the potlatch are an example of this.

According to the Musqueam First Nation's official website, numerous areas in what is today known as "Vancouver" were historically significant for conducting a potlatch. As you very likely noticed from the potlatch photo series, many of the areas traditionally used by the Musqueam for their potlatches have now been subject to widespread development by non-indigenous peoples. The inclusion of these colonial fixtures in the photographs was intentional, and is meant to point to some of the ways in which indigenous conceptions of land have become subsumed and indeed subordinate to colonial concepts of land and title.

⁸ Ibid.

Indigenous Conceptions of Land



Although there are vast cultural differences across North American First Nations, most groups maintained similar beliefs governing their connection to the land. For most First Nations, land could not or should not be owned by individuals—mankind, like all other living beings, “belonged to the land.”⁹ The land provides for humans, and in turn, humans have a responsibility to treat the land with care. This is understood by many First Nations as a reciprocal relationship.¹⁰

“Rights to the use of land belong not only to the living but to those who have gone before as well as to those who will come; neither do they belong exclusively to humans, but to other living things as well.”¹¹

- Olive Dickason

For many First Nations, such as the Haida Nation, lands are believed to house ancient ancestors.¹² Land to many First Nations can moreover be characterized as “integrated landscapes”—for First Nations like the Haida, this implies that there exists “many lifeforms, including human and supernatural beings, all of whom are interdependent upon a sustainable and healthy ecosystem, and that link ancient ancestors with future generations.”¹³ For many First Nations, laws stipulate that they are “nothing” without the land—they are defined by the land, and if the land is altered, so too are the peoples populating those lands.¹⁴

⁹ *Aboriginal Title* (Vancouver: UBC, 2009), online: Indigenous Foundations <http://indigenousfoundations.arts.ubc.ca/aboriginal_title> [*Aboriginal Title*].

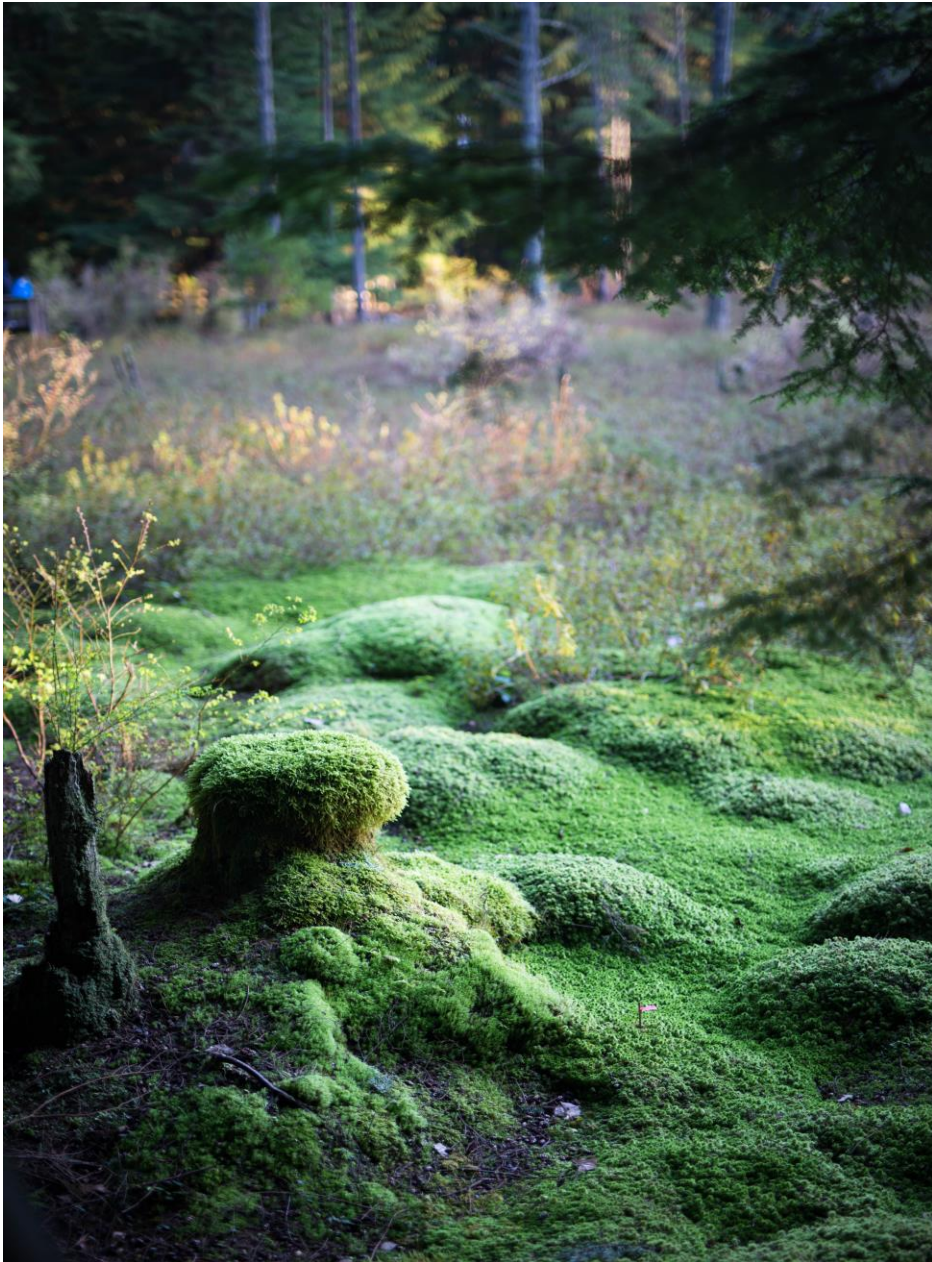
¹⁰ *Ibid.*

¹¹ Olive Dickason, *Canada's First Nations: A History of Founding Peoples from Earliest Times* (Oxford: Oxford University Press, 2009) 328.

¹² Michael Jackson, “A Reimagined and Transformed Legal Landscape” (Indigenous Legal Orders and the Common Law, Continuing Legal Education Society of British Columbia, 2012) 3.

¹³ *Ibid.* at 7.

¹⁴ Williams-Davidson, Terri-Lynn, “Weaving Together Our Future: The Interaction of Haida Laws to Achieve Respectful Co-Existence” (Indigenous Legal Orders and the Common Law, Continuing Legal Education Society of British Columbia, 2012) 6.2.2.



“So during those times when you’re there you can at times hear them singing, talking or just moving around. You just have to be comfortable with me saying that I have witnessed, I have heard, I have felt the ancestors there.”¹⁵

- Diane Brown speaking during the landmark Haida Nation case.

¹⁵ Jackson, *supra* note 12 at 3.

The Musqueam Relationship to Land



Musqueam art subsumed within the landscape. Located at the Musqueam Indian Reserve no. 2 in what is today known as "Vancouver".

The symbol of the sturgeon encapsulates the Musqueam's sacred relationship to their ancestral lands and nature more generally. For the Musqueam, the sturgeon is more than simply a fish—it represents a symbol and entry point to aspects of language and territory within their society. From the sturgeon arises much of the Musqueam's understanding of their relationship with land and nature, and the need to access territories.¹⁶ Land for the Musqueam, like many other First Nations, therefore takes on a much more esoteric dimension than Euro-centric conceptions of land and title.

“...for us, the Musqueam people, both the tangible and the intangible are interconnected, and should never be separated.”¹⁷

- Morgan Guerin

¹⁶ *Musqueam Exhibition*, Museum of Anthropology.

¹⁷ *Ibid.*

Colonizers from Europe arriving in North America brought with them Euro-centric concepts of private property ownership, and the idea that individuals should “own land as a step towards civilization”.¹⁸ In 1763, the British Crown issued the Royal Proclamation, a doctrine recognizing “Aboriginal title” during European settlement.¹⁹

Royal Proclamation was supposed to advance the principle that British sovereignty and the continuity of pre-existing indigenous land ownership were to go hand-in-hand.²⁰ But what actually transpired was a complete disregard of Royal Proclamation principles by British Columbia²¹, and instead a growing sense among colonizers and white settlers that indigenous peoples, or “Indians” as they were called, were “primitive savages incapable of concepts of land title”. This in turn fuelled the pre-existing white myth that a British Columbia populated by First Nations had been an “empty land” void of society, legal order or government. This, in turn, consecrated the colonial doctrine that all land within the colony of Canada fell directly under control of the Crown.²²

The impacts of these policies were widespread. Notably, it led to the outlawing of the potlatch, an institution critical to coastal First Nations for maintaining their economic and political systems and traditional way of life.²³ As elucidated in the Musqueam First Nation potlatch photo series earlier, the potlatch was a ceremony conducted by First Nations which asserted their intimate connection to the land. Outlawing such a vital institution furthermore demonstrates the early ways in which colonizers sought to divorce indigenous peoples from their traditional conceptions of land and to instead replace it with colonial Euro-centric concepts of title and private property.

Common Law Development and Concepts

*“The great aim [...] has been
to do away with the tribal
system and assimilate the
Indian people in all respects
with other inhabitants of the
Dominion as speedily as they
are fit to change.”*

- John A. MacDonald, first Prime Minister of Canada

Theoretical perspectives provide more meaningful analysis in elucidating the colonial state of mind with regards to land. Influential Western thinkers like John Locke posited that land was beneficial if “benefit” can be derived from it. Thus, labour and commodification made land beneficial, thus turning the use of land into a private right. Land left to its natural state, furthermore, is a “waste.”²⁴

The tendency of the colonial government to commodify and rigidly define property rights explains the emergence of the Indian reserve system. Such Cartesian mapping situated indigenous lands within an “official ambit of sovereignty, surveillance and management while detaching it from its surroundings as well as the complex land uses and spatial patterns of former Native lifeways.”²⁵ These private property rights were furthermore assumed to be the cornerstone of a “civilized” society, in which landowners were entitled to use their lands as they pleased backed by state-enforced sanctions for those who disobey. This, very generally, was the legal framework that had repossessed former First Nation lands in BC.²⁶

The idea of commodification of land is also intimately tied to the Euro-centric ideals surrounding capitalism which flourished at the time. Capitalism prioritized commodification and “beneficial use”.

The commodification mindset advocated by capitalist thought sought to “de-territorialize people, detach them from prior bonds between people and place and re-territorialize them in relation to the requirements of capital itself.”²⁷ The idea of commodification underlying capitalist thought contrasts indigenous conceptions of what it really means for land to be lived in—according to capitalist theory, a place is beneficially used to its biggest potential when it is being extracted and resources are being developed.²⁸

¹⁸ *Aboriginal Title*, supra note 9.

¹⁹ *Ibid.*

²⁰ Paul Tennant, *Aboriginal Peoples and Politics: The Indian Land Question in British Columbia, 1849-1989* (Vancouver: UBC Press, 1990) 11.

²¹ *Ibid* at 12.

²² *Ibid* at 41.

²³ *Ibid* at 52.

²⁴ Cole Harris, *Making Native Spaces: Colonialism, Resistance, and Reserves in British Columbia* (Vancouver: UBC Press, 2002).

²⁵ *Ibid.*

²⁶ *Ibid.*

²⁷ *Ibid.*

²⁸ *Ibid.*

The Subordination of Indigenous Concepts of Land

According to the principles of the European doctrine of “discovery”, all that settlers had to do to expropriate lands in a region was to sail past a river mouth and make a claim to all of the lands in the watershed. Suddenly, lands inhabited by indigenous peoples and their ancestors and spirits for thousands of years were reduced to simple colonial possessions.²⁹

More recently, modern struggles to retain indigenous peoples’ claim to traditional lands have been borne out of the White Paper of 1969; the document advocated abolishing the *Indian Act* while eliminating Indian status and Indian lands, with the purpose of converting First Nations peoples into “ethnic groups to be gradually absorbed into a melting pot”. The land, in turn, would be turned into fee simple ownership, converted to real estate and sold on an open market.³⁰

One of the problems with this commodification of land for indigenous peoples is that the “birthrights” to ancestral lands being converted to fee simple and sold were not just theirs; they were also those of their ancestors whose spirits live within the land. Those rights are not up for sale.³¹ Both historical and more recent developments point towards a consistent pattern of the colonial government implementing policies which effectively subordinate and then subsume indigenous concepts of title within colonial concepts of fee simple ownership and private property.

“As Indians see it, absolute ownership was not granted by the Creator [...] The Crown, to claim absolute title, would have to obtain surrenders from past generations as well as those of the future.”³²

- Olive Dickason



Musqueam street signs are incorporated into the Cartesian mapping system in modern day Vancouver. Located on the Musqueam Indian Reserve No. 2.

Much criticism has been made by indigenous legal scholars regarding the processes by which the colonial government divorces indigenous peoples from their traditional connections to land, both historically and contemporarily. John Borrows notes the absurdity of the current doctrines of sovereignty and Crown title: he argues that “sovereignty is like magic; its mantra ‘Aboriginal title is a burden on the Crown’s underlying title. This mere assertion is said to displace previous indigenous titles by making them subject to [...] another people’s ‘higher’ legal claims.’” Furthermore, that a “legal entitlement to land” can be enforced over another pre-existing entitlement simply by “raw assertion” is absurd.³³

James Sákéj Youngblood Henderson also notes how the “colonial contrived superiority of European law” has effectively forced indigenous peoples to live according to imposed Euro-centric narratives. He states that indigenous peoples “live most of our life in someone else’s dream world. We exist in the contrived institutional and conscious realms of a failed colonization; a state of existence that is often confused with the idea of civilization or modernity.”³⁴

Furthermore, for many indigenous peoples, there is a general sense that Canadian common law imports with it ideals of private property and legal title that are incompatible with indigenous legal concepts. By situating Aboriginal title within common law frameworks, many indigenous have found that the “underlying complexities within Aboriginal understandings of title (rooted in a reciprocal relationship to the land) are overlooked or circumscribed.”³⁵

²⁹ Arthur Manuel and Grand Chief Ronald M, Derrickson, *Unsettling Canada: A National Wake-Up Call* (Toronto: Between the Lines, 2015) 4.

³⁰ *Ibid* at 30-31.

³¹ *Ibid* at 59.

³² Dickason, *supra* note 11 at 328.

³³ John Borrows, *Recovering Canada: The Resurgence of Indigenous Law* (Toronto: University of Toronto Press, 2002) 95-96.

³⁴ James (Sákéj) Youngblood Henderson, “Postcolonial Indigenous Legal Consciousness” (2002) 1 *Indigenous Law Journal* 16,

³⁵ *Aboriginal Title*, *supra* note 9.

MUSQUEAM LITIGATION

GUERIN

In *Guerin v The Queen* (1984), the Supreme Court of Canada established that the Canadian government has a fiduciary duty to First Nations, specifically in regards to reserve lands. In other words, the government has the obligation to act in their best interest.³⁶

The Shaughnessy Golf and Country Club in the Musqueam Reserve in Vancouver, site of the litigation under dispute in *Guerin*.³⁷



³⁶ *Guerin v The Queen*, [1984] 2 SCR 335 [*Guerin*].

³⁷ *Ibid.*



Canoe Passage in modern day Delta, British Columbia. Site of the fishing that took place under litigation in *Sparrow*.⁴¹

SPARROW

R v Sparrow (1990) was a precedent-setting decision made by the Supreme Court of Canada determining whether government infringement on Aboriginal rights was justifiable and provided that Aboriginal rights were in existence at the time of the Constitution Act, 1982.

The court ultimately ruled in this case that the Musqueam's right to fish had not been "extinguished" and reaffirmed their Aboriginal rights within the framework of section 35.³⁸

Although the Supreme Court ruled in favour of the indigenous positions in both *Guerin* and *Sparrow* the rulings nonetheless illuminate some of the shortfalls of the existing legal framework of Aboriginal title highlighted by critics like Henderson and Borrows. In *Guerin*, the nature of the dispute revolved around the terms of a 75 year-lease the Musqueam Nation was granting to a golf club, and specifically, how much the Musqueam would profit commercially.³⁹ In *Sparrow*, the Court affirmed the Musqueam's right to fish on traditional lands and Aboriginal rights within section 35, although still established a framework by which Aboriginal rights can be justifiably be infringed.⁴⁰

The facts arising out of *Guerin* and *Sparrow* furthermore allude to the state of commodification indigenous lands have become subject to as per *Guerin* on the one hand, while also demonstrating how aboriginal rights and title are still considered to be subject to underlying government rights as per *Sparrow* on the other. Colonial concepts of private property and capitalism have become so pervasive that for many indigenous groups like the Musqueam, traditional conceptions of land have arguably become subsumed within the common law framework, facilitating instances in which extinguishing land claims for capitalistic pursuits is seen as favourable. This calls in to mind Henderson's assertion that the common law has effectively forced indigenous peoples to live according to imposed Euro-centric narratives; for many First Nations, laws have been shaped to force them to give in to colonial legal traditions, just as early colonizers intended to do. *Sparrow* also calls to mind Borrows' analysis regarding the absurdity of the Crown to impose its own interests over those of indigenous peoples under the doctrine of sovereignty. As per *Sparrow*, even if aboriginal rights are found to exist, they may nonetheless be "justifiably infringed" if it is found that a government objective is compelling enough.

Thus, although these cases may be viewed in some instances as a "win" for indigenous peoples, they still nonetheless demonstrate that any advancements that indigenous peoples may claim in terms of aboriginal rights or title can only take place within the framework of a fundamentally incompatible Euro-centric vision of law.

³⁸ *R v Sparrow*, [1990] 1 SCR 1075 [*Sparrow*].

³⁹ *Guerin*, *supra* note 36.

⁴⁰ *Sparrow*, *supra* note 38.

⁴¹ *Ibid.*

OTHER NOTABLE ABORIGINAL TITLE LITIGATION CASES

Calder

In *Calder et al. v Attorney-General of British Columbia* (1973), the Supreme Court for the first time acknowledged the continued existence of aboriginal title.⁴² In response to *Calder*, the federal government developed a comprehensive claims process for addressing issues related to Aboriginal land claims.⁴³

Delgamuukw

In *Delgamuukw v. British Columbia* (1997), the Supreme Court have laid their most comprehensive decision regarding Aboriginal title to date, ruling that “aboriginal title” confers to First Nations the right to the land itself⁴⁴ and encompasses the right to the exclusive use and occupation of the land held pursuant to a variety of purposes that need not be strictly traditional aboriginal practices.⁴⁵ *Delgamuukw* established how courts were to deal with claims of Aboriginal Title, by setting a test to determine if Aboriginal title still existed, and if so, whether the Crown may infringe upon it. The case was also significant for acknowledging that Aboriginal collective ownership of ancestral lands included a cultural relationship to the land that went beyond simple property rights.⁴⁶

The Court also noted that the “inalienability of lands held pursuant to aboriginal title suggests that those lands are more than a fungible commodity” and that the land over which an aboriginal community resides has a unique and important “non-economic component” that must be protected.⁴⁷

Haida Nation

In *Haida Nation v. British Columbia (Minister of Forests)* (2004), the Supreme Court ruled that the Crown has a legal duty to consult and accommodate aboriginal peoples when making decisions that could infringe upon their rights or lands.⁴⁸

Implications of these cases on Aboriginal title

Although each of these cases represent important milestones in the advancement of aboriginal title rights, they nonetheless come with some important caveats which demonstrate that, regardless of what recognition Canadian courts may give to aboriginals, their claim to ancestral lands are still subject to and subsumed within the broader interests of the Crown.

The claims process borne out of *Calder* is an early example of this. The process was essentially a means by which Aboriginal title could be extinguished in exchange for rights and benefits outlined in a settlement. For many First Nations, the concept of “extinguishment” is incompatible with their traditional beliefs: the connection between First Nations and their ancestors to their traditional lands are inalienable.⁴⁹

Despite the advancements in *Delgamuukw*, Aboriginal title is still defined as a burden on the Crown’s underlying title. Arguably, one of the downfalls with the *Delgamuukw* decision was that it essentially accepted this as a given, and did not require the Crown to prove its claim to sovereignty. For many First Nations, such a decision is problematic as it assumes the Crown’s sovereignty “without questioning its legitimacy.”⁵⁰ Even the decision in *Haida Nation* reinforces the fact that, ultimately, despite the Crown now needing to consult and accommodate affected aboriginal groups regarding a decision that may potentially impact their lands, the Crown may nonetheless be able to proceed if the overall objective is pressing enough.

Sparrow sets out the initial test for infringement, with *R. v. Gladstone* (1996) providing modifications. As per the Court’s ruling in *Gladstone*, and reaffirmed in *Delgamuukw*, aboriginal title can be infringed if there is a “compelling and substantial legislative objective.” This is defended by the Court as they believe it is fundamental for the “reconciliation” process: sometimes aboriginal rights or title need to be limited if in the best interests of the broader community.⁵¹ Once again, rulings of the court seem to suggest that, ultimately, advancements of First Nations interests are always to be tempered by the inevitable finding that the underlying interests of government, and sometimes even non-indigenous third parties, take precedence.

⁴² *Calder et al. v Attorney-General of British Columbia*, [1973] SCR 313.

⁴³ *Aboriginal Title*, *supra* note 9.

⁴⁴ *Delgamuukw v British Columbia*, [1997] 3 S.C.R. 1010 at para 138.

⁴⁵ *Ibid* at para 117.

⁴⁶ *Ibid* at para 132.

⁴⁷ *Ibid* at para 129.

⁴⁸ *Haida Nation v British Columbia (Minister of Forests)*, [2004] 3 S.C.R. 511, 2004 SCC 73.

⁴⁹ *Aboriginal Title*, *supra* note 9.

⁵⁰ *Ibid*.

⁵¹ *R v Gladstone*, [1996] 2 SCR 723 at para 73.



The “Mardole Midden”

’ cəsnaʔəm (“Marpole”)

cəsnaʔəm is an ancient Musqueam village located in what is today known by settlers as “Marpole”. For the Musqueam, cəsnaʔəm is a part of a network of ancient villages and a cog of a larger regional network of family relations, intergovernmental relations, and trade. Musqueam ancestors are buried in cəsnaʔəm. For the Musqueam, cəsnaʔəm furthermore represents a significant component of their traditional lands, and by extension, their languages, oral histories and ceremonies.⁵²

The Marpole “Midden” is an ancient burial site for the Musqueam people, dating back at least 4000 years.

The site has deep historical and cultural significance for the Musqueam people, but has recently been subject to a well-publicized dispute regarding its existence.⁵³ In January 2011, a residential condo development was being planned for the Marpole Midden site without prior consultation from the Musqueam. Despite the findings of important archaeological remains and Musqueam attempts at reaching out to the municipal, provincial and federal governments, as well as the developer, Musqueam concerns were sidelined. Ultimately, the province of British Columbia in September 2012 decided that the development should be halted and that, instead, the Midden should be commemorated as a National Historic Site. Had the development went on as planned, the disturbance would have tarnished a sacred burial place and would have erased one of the few remaining links the Musqueam have to their heritage.⁵⁴

The Marpole Midden furthermore acts as a useful case study for animating some of the tensions regarding land ownership described thus far. On the one hand, indigenous peoples view the midden as invaluable and irreplaceable piece of cultural heritage, defining the collective identity of both living and dead Musqueam peoples. According to the developer and various levels of government, the land was a piece of property that could be sold, owned and used to reap financial benefits. There thus appears to be a tension between the idea of cəsnaʔəm representing a “living landscape” within an “integrated territory” by the Musqueam⁵⁵ on the one hand, with the ideals of commodification and capitalism advocated by non-indigenous actors on the other. Although the provincial government ultimately ruled in the Musqueam’s favour, it was only as a result of strong and sustained opposition by the Musqueam and negative publicity.

The case of the Marpole Midden furthermore demonstrates that the current legal framework in place continues to prioritize Euro-centric concepts of title: the condo development was initially approved without consulting the Musqueam to determine if it had any special importance, and the Musqueam’s historical and cultural connections to the land were sidelined to make way for capitalist pursuits.

⁵² cəsnaʔəm Exhibit, Museum of Vancouver.

⁵³ cəsnaʔəm (Vancouver: Musqueam Indian Band, 2011), online: Musqueam: A Living Culture <<http://www.musqueam.bc.ca/cəsnaʔəm>> [cəsnaʔəm].

⁵⁴ Ibid.

⁵⁵ Susan Roy, “Who Were These Mysterious People? cəsnaʔəm, the Marpole Midden, and the Dispossession of Aboriginal Lands in British Columbia” (2006/2007) 152 BC Studies 67 at 95.

A View to Reconciliation...



Street signs at UBC's Vancouver campus written with Musqueam names.

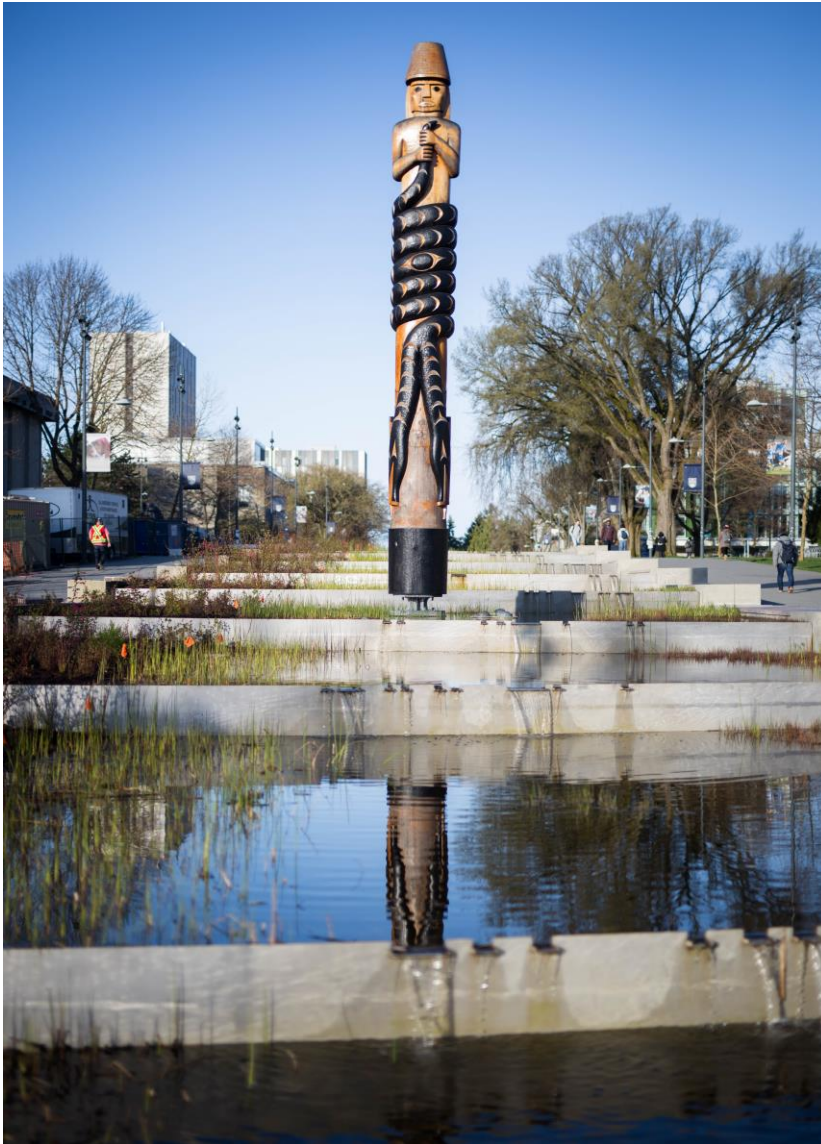


The Museum of Anthropology on Vancouver's UBC campus houses numerous Canadian indigenous pieces.

Among the numerous issues that need to be addressed under the process of reconciliation, the issue of aboriginal title is perhaps one of the most pressing. For the Musqueam First Nation, the question of land is particularly significant: being one of the few First Nations in Canada to have traditional lands located in a highly populated major city, they have seen the size of their traditional inhabited lands dramatically reduced to relatively small scattered reserves. This has created challenges and obstacles to reconciliation in the context of land that is somewhat unique to the Musqueam people. Accordingly, the city of Vancouver has an important role to play in addressing the legacy of colonialism and incompatible common law concepts of land and title which still affect the Musqueam to this day. Institutions located on traditional unceded Musqueam territory like the University of British Columbia, Museum of Anthropology⁵⁶ and the Museum of Vancouver have importantly implemented various reconciliation initiatives in the past, but I would argue that more needs to be done.

⁵⁶ The Museum of Anthropology has advocated for repatriation of stolen indigenous relics by museums to rightful indigenous owners as a step towards reconciliation. *Musqueam Exhibition*, *supra* note 16.

⁵⁷ The cəsnaʔəm Exhibit at the Museum of Vancouver advocates for the return of land, shared responsibility for the management of land and the revitalization of indigenous languages as means of achieving reconciliation. *cəsnaʔəm Exhibit*, *supra* note 52.



In order for the question of indigenous lands to be satisfactorily addressed, we first need to acknowledge our underlying Euro-centric assumptions about law and society which act as barriers to reconciliation. Henderson notes that Western concepts of law and society in Canada have created an environment in which indigenous peoples are forced to undergo certain educational and professional experiences which make them “disconnected from [their] traditional worldviews, languages and teachings.”⁵⁸ Within the legal context, aboriginal peoples face a major challenge in trying to create a space for their laws and beliefs in the reconciliation when legal actors “perpetuate, unconsciously or consciously a Euro-centric world view.”⁵⁹ In order to prepare such participants in respecting indigenous laws, a “three-fold process of recognition” should take place: that there be recognition of “the nature and scope of the challenge”, by acknowledging what hinders the legal perspectives and by “recognizing the need for humility, respect and receptivity [...] in our approaches to indigenous legal orders.”⁶⁰ In order for meaningful reconciliation to take place, more broad and significant changes will have to be made to the current existing legal order. Initiatives like UBC’s Musqueam post, indigenous street signs and calls of action by BC museums are all significant developments, but in order for true substantive reconciliation to occur, our laws will have to reflect a respect and trust for indigenous peoples and their legal traditions.

The
Musqueam
sʔi:ɬqəy'
qeqən
(double-
headed
serpent post)
at
Vancouver’s
UBC campus.



The Musqueam Cultural Pavilion, located on the Musqueam Indian Reserve No. 2 in Vancouver.

⁵⁸ Henderson, *supra* note 34 at 16.

⁵⁹ Jackson, *supra* note 12 at 1.

⁶⁰ *Ibid* at 1.

Concluding Statement

Indigenous title rights in Canada have made significant strides in the past few decades in helping recognize the vitality of indigenous legal traditions, but these advancements have nonetheless taken place in a system that continues to prioritize colonial common law concepts of land and private property while treating indigenous legal orders as an afterthought. The history of litigation on aboriginal title in Canada can furthermore be characterized as one that has subsumed traditional indigenous legal orders within a broader colonial legal framework, resulting in a situation in which issues pertaining to indigenous peoples and their connection to the land are not being adequately addressed. Efforts furthermore need to be made to decolonize our laws and society and to forge a space whereby indigenous legal orders can co-exist with current common law conceptions of land and title under the broader scheme of reconciliation.

The objective of the photobook was to try and use the inherently emotive quality of photographic images to better express the esoteric and spiritual dimensions indigenous peoples like the Musqueam place on their ancestral lands, while also highlighting some of the ways in which these lands have been subsumed within common law concepts of title and to explicate the tensions between these divergent conceptions. Through photography, my hope is that Musqueam conceptions of their traditional land can be better understood and felt, and to impart a sense of the dilemmas and issues being faced by indigenous peoples all over Canada in their pursuit of respect and equal rights.